

Bihar Street Vendors (Protection of livelihood and regulation of Street Vending) Schemes 2017

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State of Bihar - Act

Bihar Street Vendors (Protection of livelihood and regulation of Street Vending) Schemes 2017

BIHAR

India

Bihar Street Vendors (Protection of livelihood and regulation of Street Vending) Schemes 2017

Rule

BIHAR-STREET-VENDORS-PROTECTION-OF-LIVELIHOOD-AND-REGULATION-OF-STREET-VENDING-SCHEMES-2017 of 2017

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Bihar Street Vendors (Protection of livelihood and regulation of Street Vending) Schemes 2017

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No. 04/SV(NULM)-04/2015-415/UD & HD. - In exercise of the powers conferred by Section 38 of the Street Vendors (Protection of Livelihood and Regulation of Street Vending) Act, 2014 (Central Act 7 of 2014), the State Government after consultation with the Urban Local Bodies and Town Vending Committees do hereby make the following Scheme for the purpose of the said Act, namely :-

Chapter - I Preliminary

1.

Short title and commencement.

(1)

This Scheme may be called The Street Vendors (Protection of Livelihood and Regulation of Street Vending) Scheme-2017.

(2)

It shall come into force on such date, as State Government may, by notification, fixed and different dates may be fixed different Municipalities.

2.

Definitions.

(1)

In this Scheme, unless the context otherwise requires:-

(a)

"Act" means the Street Vendors(Protection of Livelihood and Regulation of Street Vending) Act, 2014(Central Act 7 of 2014);

(b)

"appropriate Government" means the Government of Bihar;

(c)

"local authority" means a Municipal Corporation or a Municipal Council or a Nagar Panchayat, by whatever name called, [or the Cantonment Board, or as the case may be, a civil area committee appointed under section 47 of the Cantonment Act, 2006 [or such other body entitled to function as a local authority in any city or town to provide civic services and regulate street vending in that city or town;

(d)

"notification" means a notification published in the Official Gazette and the term "notify" shall be constructed accordingly;

(e)

"street vendor" means a person engaged in vending of articles, goods, wares, food items or merchandise of everyday use or offering services to the general public, in street, lane, side walk, footpath, pavement, public park, or any other public place or private area, from a temporary built up structure or by moving from place to place and includes hawker, peddler, squatter and all other synonymous term which may be local or region specific; and the words "street vending" with their grammatical variations and cognate expressions, shall be constructed accordingly;

(f)

"stationary vendors" means street vendors who carry out vending Activities on regular basis at a specific location;

(g)

"mobile vendors" means street vendors who carry out vending Activities in designated area by moving from one place to another place vending their goods and services;

(h)

"festive market" means a market where sellers and buyers have traditionally congregated for the sale and purchase of products or services during festival season of the city or town and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(i)

"heritage market" means a market which has completed more than fifty years in one place where sellers and buyers have traditionally congregated for the sale and purchase of products or services and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(j)

"natural Market" means a market where sellers and buyers have traditionally congregated for the sale and purchase of products or services and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(k)

"niche market" means a market where sellers and buyers have traditionally congregated for the sale and purchase of niche products or services and has been determined as such by the local authority on the recommendations of the Town

Vending Committee;

(l)

"night bazaar" means a bazaar where sellers and buyers have traditionally congregated for the sale and purchase of products or services after evening i.e. during night and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(m)

"seasonal market" means a market where sellers and buyers have traditionally congregated for the sale and purchase of products or services during specific seasons and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(n)

"weekly market" means a market where sellers and buyers have weekly congregated for the sale and purchase of products or services and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(o)

"Town Vending Committee" means the body constituted by the appropriate Government under Section 22 of the Act;

(p)

"vending zone" means an area or a place or a location designated as such by the local authority, on the recommendations of the Town Vending Committee, for the specific use by street vendors for the street vending and includes footpath, side walk, pavement, embankment, portions of a street, waiting area for public or any such place considered suitable for vending Activities and providing services to the general public.

(q)

"Plan" means the Plan made under First Schedule of Section 22 of the Act;

(r)

"planning authority" means an Urban Development Authority or any other authority in any city or town designated by the appropriate Government as responsible for regulating the land use by defining the precise extent of areas for any particular Activity in the master plan or development plan or zonal plan or layout plan or any other spatial plan under the Town and Country Planning Act or the Urban Development Act or the Municipal Act, which is legally enforceable for the time being as the case may be;

(s)

"public purpose" includes in the context of the Act (i) widening of roads, streets, lanes; (ii) shifting the alignment of roads, streets, lanes; (iii) erecting flyovers with or without clover leaves and slip down roads; (iv) erecting underpasses; (v) development of land owned by public authorities for some public projects; (vi) laying of water, or sewer pipe lines; (vii) erecting intermediate pumping stations for the services; (viii) any project related with public transport like BRTS, Metro, etc.; (ix) erection of Economically Weaker Section (EWS) Housing; (x) Creation Parks, Gardens and Recreational Area; (xi) Conservation of any eco system resource in that area and (xii) Any other development work taken by the local authority, the beneficiary of which will be the community at large.

(t)

"Scheme" means the Scheme made under Second Schedule of section 38 of the Act;

(u)

"Section" means section of the Act;

(v)

"holding capacity" means the maximum number of street vendors who can be accommodated in any vending zone and has been determined as such by the local authority on the recommendations of the Town Vending Committee;

(w)

"Grievance Redressal Committee" means a committee constituted by the Government of Bihar under sub- section (1) of section 20 of the Act;

(2)

Words and expressions defined in the Act and used but not defined in this scheme shall have the same meaning as respectively assigned to them in the Act.

Chapter -II Manner of Conducting Survey

3.

Process of Survey.

(1)
The Town Vending Committee shall conduct the survey itself or go it done by any suitable agency.

(2)
Adequate publicity of the proposal shall be given in the following manner:-

- (i)
On its websites
- (ii)
by publishing in any two prominent local newspapers published in the local language of the area
- (iii)
by placing it on the notice board of the office, and
- (iv)
by placing a copy in any conspicuous place in the local market within the jurisdiction of the local authority

(3)
Camps may be organized for the survey of street vendors after prior information

4.
The survey outcome shall be available in the digital format

5.
In the survey report the street vending activity carried on from the carriage way shall be specifically mentioned and marked on the map. Similarly, mode of vending shall also be clearly indicated. Manner of vending may be any of the following:-

- (1)
Push cart/ motorized vehicle
- (2)
Floor spread
- (3)
Rack and hanging frame mode

6.
Subject to the provisions of the Act and the provisions contained in the Scheme, the Town Vending Committee shall, as far as practicable, ensure that all existing Street Vendors identified in the survey conducted under section-3 are accommodated in the vending zone.

Chapter - III Issue of Identity Card and Certificate of Vending

7.
The period within which Identity Card and certificate of vending shall be issued to the street vendors identified under survey.

- The street vendor identified by the survey shall be issued Identity card and certificate of vending within a maximum period of six [6] months' time from the date of survey.

8.
The terms and conditions subject to which Identity card and certificate of vending may be issued to a street vendor including to those persons who wish to engage on street vending during the intervening period of two surveys.

- The criterion under which Identity Card and certificate of vending to street vendors will be issued:-

- (i)
Name shall include in the survey carried out by the TVC.
- (ii)
shall be street vendor only and will not be engaged in any other occupation.
- (iii)
No other parallel vending site in any other place by the same persons. However his/her spouse and any child above 14 years of age can have a different vending site.
- (iv)
shall engage the vending by him or her though family or other people (if he/she has completed 14 years) can be involved.

(v)

Any street vendor who has completed the age of 14 years of age.

(vi)

New Street vendor who wish to carry on street vending during the intervening period of two surveys, has to apply through Town Vending Committee for the Identity card and vending certificate.

9.

The form and manner in which the certificate of vending shall be issued to a street vendor.

- (i) Photo of the vendor-

(ii)

Name of the vendor-

(iii)

Name of the spouse or dependent child if involved in vending with the vendor-

(iv)

Age and Sex of the person/s whose photo appears-

(v)

Address of residence-

(vi)

Category of Vending (Mobile/Stationary/Natural/Weekly etc.)-

(vii)

Name of Vending Place (whether it is historical place, park, market, in front of school/college/hospital/bus stand or malls etc.)-

(viii)

Name of the Municipal body-

(ix)

Date of Issuing Vending Certificate-

(x)

Validity (Since the law provides for survey every five year, the certificate of vending should also be issued for five year)-

(xi)

Unique Registration Number-

10.

The form and manner of issuing identity cards to street vendors.

- (i) Name of the vendor-

(ii)

Age-

(iii)

Sex-

(iv)

Address of residence-

(v)

Address of the vending site-

(vi)

Photo-

(vii)

Phone Number-

(viii)

Category of vending-

(ix)

Municipal ward or zone number-

(x)

Police station-

(xi)

Validity period-

(xii)

Signature of the authority with seal-

11.

The period of validity of Identity card and certificate of vending.

- The Identity card and vending certificate shall be renewed after every five [5] years through a simple process of paying the fees. The deposit of fees and issue of receipt shall be considered to be adequate proof of the renewal of vending certificate.

Chapter -IV Renewal, Suspension and Cancellation of Certificate of Vending

12.

The period for which and the manner in which a certificate of vending may be renewed and the fees for such renewal.

(1)

The vending certificate may be renewed after every five [5] years .It shall be a simple process of submitting the fees and renewing the vending certificate.

The Town Vending Committee will put up the list of the vendors whose due dates for renewal falls within a period of two months. In the said paper the amount as well as the places or institution where it can be paid can be indicated.

(2)

TVC will publish a list of defaulter street vendors who has failed to pay the renewal fees of vending certificate.

(3)

The renewable fees of the vending certificate shall not be less than Rs.500.

(4)

1 (One) month's period will be granted for the payment of renewal fees without any penalty.

(5)

In case of loosing Identity Cards or Certificate of vending, TVC can issue the duplicate Identity card or Certificate of vending with the cost of Rs. 50/ to street vendors.

13.

The manner in which the certificate of vending may be suspended or cancelled.

- The TVC shall impose fine and a warning on the street vendor found guilty of breach of conditions laid down in the vending certificate. The following will be the breach of conditions:-

(i)

If he/she carrying out vending squatting/ hawking in the area/market other than mentioned in the vending license.

(ii)

Misrepresented the age (minimum age is 14 years) for eligibility to get vending certificate;

(iii)

If the area allotted has been increased or unauthorized occupying additional area.

(iv)

If no registration has been done under FSSAI in case of food vendors.

(v)

If any permanent structure has been constructed on the allotted place.

(vi)

If certificate of vending is sold or leased out to any other person.

(vii)

If the vending certificate has not been renewed after the prescribed period is over.

(viii)

Any street vendor who has employed any child below 14 years of age [under Child Labour (Prohibition and Bye-laws [Regulation]) Act, 2005] will be given a warning by the TVC. But failing that their vending certificate will be cancelled.

(ix)

Any street vendor who is guilty of misbehaviour with women vendor will be given a warning based on the written complaint filed by the aggrieved.

(x)

The TVC should make a committee [Headed by a woman official] to take into account the Domestic Violence Act, 2005,

Harassment at workplace (Prevention, Prohibition and redressal) Act-2013 and also Indian Penal Code to protect women at work place.

Chapter - V Categories of Street Vendors and Fees

14.

The categories of street vendors.

- The vendors can also be categorized as :

(i)

Stationary;

(ii)

Mobile;

(iii)

Any other which may the state Govt. provide for.

15.

The other categories of persons for preference for issue of Identity card and certificate of vending.

- TVC will accord priority for senior citizen, physically challenged, single mothers and widows.

16.

The vending fees to be paid on the basis of category of street vending, which may be different for different cities.

- The vending fees shall be according to the category of the street vendors and the status of the market.

[Explanation. - Income potential differs from area to area. High footfall areas offer high vending opportunity compared to lean footfall areas. Therefore it is only correct to fix the fees at different rates for different categories of vending zones. Similar will be the arguments for varied rates for cities and towns of different categories.]

TVC shall have to fix fees/levies depending on the footfall of the area but fees shall be minimum Rs.150 and maximum Rs.1500 per month. Every year a minimum 10% increase shall be imposed. Local authority can collect vending fee annually if it deems fit.

17.

The manner of collecting, through banks, counters of local authority and counters of Town Vending Committee, vending fees, maintenance charges and penalties for registration, use of parking space for mobile stalls and availing of civic services.

- Every TVC will have a bank account and street vendors will deposit the money per month or year into that account along with the details in the prescribed form. An annual audit of the account will be carried out by the TVC. The local authority concerned is free to make its own any alternative arrangement for collection for TVC.

Chapter - VI Relocation and Eviction of Street Vendors

18.

The public purposes for which a street vendor may be relocated and the manner of relocating street vendor.

(1)

Any project of public purpose, requiring temporary or permanent shifting of the street vendors in the project related area, the concern authorities shall consider following two points for relocation:

(i)

During the time of construction/development the street vendors may be adjusted in a nearby place temporarily or permanently.

(ii)

After completion of the project, the street vendors may be adjusted in the same place of public purpose area for vending to the extent possible but it is not compulsory/mandatory.

(2)

Rehabilitation of street vendors under any public purpose would require taking of the following steps:-

(a)

Give an estimate of footfall status in an area where from the vendors are to be shifted.

(b)

Total number of vendors to be shifted.

(c)

Footfall status of the alternative sites.

(d)

Carrying capacity of the alternative sites.

(e)

Likely availability of vending space after the project is completed.

(f)

Temporary allotment of sites for shifting the vendors may be done by lots.

(g)

In case number of the vendors in the original site is more than the number which could be accommodated after the project is completed, allotment by lot can be adopted.

(h)

The vendors who were carrying on business from a government land can either be placed in a plot owned by the public authority or can be organized on the road depending on the availability.

19.

The manner of evicting a street vendor.

(1)

TVC should bring in its agenda and discuss the issue of eviction of street vendors 2 months prior to the issuance of 1 month notice of eviction, so that a survey can be conducted to identify an equally vending site for the street vendors

(2)

The 1 month written notice should be served via registered post prior eviction in the name of street vendor. It can be served personally also.

(3)

In case registered post comes back undelivered, the said notice should be posted on the area where from he is carrying on his vending. That should be considered as the service of the notice.

20.

The following shall be the manner of giving notice for eviction of a street vendor.

(1)

One month notice prior eviction under Section 18 of the Act.

(2)

The notice of eviction should be in the name of the street vendor who is getting evicted via registered post or personally.

21.

The manner of evicting a street vendor physically on failure to evict.

(1)

Under Section 18 of the Act the street vendor who fails to move out on the expiry of the eviction notice period shall be liable to pay for everyday default.

(2)

The default amount or the penalty payable by the street vendor may extend up to Rs. 250 only. However, the penalty fees will not exceed the value of the goods seized.

Chapter - VII Seizure of Goods

22.

The manner of seizure of goods by the local authority, including preparation and issue of list of goods seized.

- Under Section-19 of the Act, following steps may be followed with regard to seizure of goods:

(i)

Only the authorized person from the local authority will conduct seizure of goods.

(ii)

The list of goods seized will be made by the concerned authority and the same will be duly signed by the concerned authority.

(iii)

The street vendor, whose goods are seized, will be given proper receipt by the authority.

23.

The manner of reclaiming seized goods by the street vendors and the fees for the same.

(1)

Under Section 19(2) the local authority may release the perishable seized goods same day of the such seizure and in case of non-perishable goods within 2 working days.

(2)

The fees to be paid by the street vendor for reclaiming the goods may not exceed the value of the total seized goods of the vendor.

(3)

In case of vending without certificate then the charge should not exceed Rs. 500/- for reclaiming seized goods

(4)

In case of perishable goods, the vendor may be given option to take the goods back immediately by paying necessary penalty or within the working period in the next 24 hours.

Chapter - VIII Social Audit

24.

The form and the manner to carry out social audit of the Activities of Town Vending Committee and maintenance of records.

- Every TVC shall constitute a three member unit for the purpose of carrying out social audit under Section 26(3). The social audit unit shall be an independent body.

(1)

The social audit unit shall consist of the following:-

(a)

An eminent Academician in the field of Sociology

(b)

An eminent Social Activist

(c)

A Retired Administrator

Supporting adequate Secretariat Staff with office space and equipment should be provided by the local authority

(2)

The social audit shall be carried out at least once in three years. The schedule for conduct of the social audit shall be determined at an appropriate time

(3)

The TVC shall provide details of all relevant information, at least a fortnight before the social audit process commences. This shall include the following:-

(a)

Status of implementation of the Act and the Scheme for Street Vendors.

(b)

A record of the minutes of the meetings of the TVC conducted in those years.

(c)

Record of all registered street vendors.

(d)

Records of appeals made before the local authority under Section 11 of the Act.

(e)

Record of all grievances/disputes brought before the Grievance Redressal Committee under Section 20 of the Act.

(f)

Record of the total number and details of evictions and confiscation of goods and relocation of street vendors taken place in those years.

(g)

Records of social audit reports, if any, taken place previously.

(4)

The social audit unit shall conduct meetings and focused group discussions with street vendors on various aspects of the implementation of the Act and the Scheme.

(5)

The social audit unit shall record in writing grievances of street vendors on any issue faced by them.

(6)

At the culmination of the social audit process, the unit shall record its findings in writing.

(7)

The social audit unit shall hold a social audit public meeting at the TVC office. TVC members and representatives of the local authority shall attend the meeting. Street vendors of the particular area and other persons from the public may participate in the meeting. The social audit unit shall read out its findings at the meeting. Street vendors shall be encouraged to testify and the TVC shall respond to each of the issues identified in the social audit by giving clarification and/or explanation to the affected party and the public as to why a certain action was taken or not taken.

(8)

The social audit unit shall give adequate notice of the social audit public meeting by a public notice.

(9)

The local authority shall on each finding of the social audit in cases of gaps, lapses or deviations fix responsibility and shall take immediate corrective or disciplinary action. In case of a dispute, an administrative enquiry shall be conducted by the local authority and action taken accordingly in the shortest time possible and in any case not later than a month.

(10)

The statutory requirement of conducting social audit shall not preclude any independent initiative to carry out normal audit of accounts.

(11)

Social audit reports submitted in this process shall form part of the record and shall be responded to by the TVC. Where shortcomings are found immediate action shall be taken as per these rules. The social audit report as well as the action taken report shall form part of the record and shall be public information.

(12)

The budget for conducting social audit shall be allocated from amongst the administrative cost allowed for TVC.

Chapter - IX Miscellaneous

25.

The conditions under which private places may be designated as restriction-free-vending zones, restricted - vending zones and no-vending zones.

- Where the local authority decides to declare any private land as the vending zone, it shall take into consideration the possibility of offering compensation in form of additional floor space Index (FSI) or Floor Area Ratio (FAR) than prevailing in that area or Transferrable Development rights (TDR) in case the General Development Control Regulations (DGCR) of the local authority has got the provisions of it. The street vendors are to be accommodated in the ground level only.

26.

The terms and conditions for street vending including norms to be observed for up keeping public health and hygiene.

(1)

The Local Authority of the concerned area will provide these vendors a proper place to dispose off their waste materials in order to maintain a hygienic environment.

(2)

The street vendors will use proper covered dustbins to dispose off the waste materials. The used water will also be disposed off in a covered container.

(3)

The Local Authority will ensure and provide the street vendors clean and fresh water along with street light facility wherever it is possible.

(4)

Attempt may be made to provide clean and properly constructed toilets with water and electricity facility in order to maintain public health and hygiene near the street vending strips.

(5)

Every street vendor will have service record book and TVC only can/ will access that. Based on that TVC can award prize/impose fine upon the vendor.

27.

The designation of State Nodal Officer for co-ordination of all matters relating to street vending at the state level.

(1)

The designated Nodal Officer should not be below the Joint Secretary level.

(2)

The nodal officer shall have at least a half yearly meeting with the Local Authorities in order to get himself acquainted with various field level issues.

(3)

The nodal officer may have the feedback forms from the street vendors about the problems faced by them.

28.

The manner of maintenance of proper records and other documents by the Town Vending Committee, Local Authority, planning authority and state nodal officer in respect of street vendors.

(1)

On -line software will be developed by the state governments for keeping the records of the street vendors.

(2)

The local authority must enter the data of the surveyed street vendors through online process.

(3)

The certificate of vending and identity card must be on-line generated.

29.

The manner of carrying out vending Activities on time-sharing basis.

(1)

The TVC will determine it depending on the market needs.

(2)

Women vendors will not be discriminated while allotting time - sharing vending Activities.

30.

The principles for determining of vending zones as restriction-free-vending zones, restricted-vending zones and no-vending zones.

(1)

An intensity of foot fall, Road width and Density of the vehicular and pedestrian movement shall be the cornerstone for deciding vending and no vending zone. There shall be no restricted free vending zones in the city and no vending zone should be very minimal. The TVC shall decide the particular street or market as vending zone or no vending zone as specified below and accordingly the space should be allotted.

(2)

There shall not be any totally restriction- free-vending zones in the city. Carrying capacity of an area would put up the ultimate limit on the number of street vendors which can be positioned in any area. However, there shall not be any restriction on mobile vending in this area if vendors continuously move without affecting traffic and commuter movements. In such cases the TVC has to decide the total number of such mobile vendors can be accommodate after taking into account the area of significant footfall and 1/3rd of the holding capacity of the area. Otherwise there is every chance of mobile vending itself creating problem for the traffic movement, as the mobile vending invariably takes place from the carriage way.

(3)

Restricted vending zones will be linked with the road width in the following manner:-

(a)

There shall not be any stationary street vending on a road having width less than 3.5 meters.

(b)

There shall not be any stationary street vending on a road having width between 3.5 meters to 6 meters. However, street vending shall be allowed if such road is declared as no vehicular road. In such cases, the street vending shall be restricted to 2.0 meter.

(c)

There shall not be any stationary street vending on a road having width between 6 meters to 9 meters. However, street vending shall be allowed if such road is declared one way vehicular road.

(d)

There shall be only one side stationary street vending on a road having width between 12 meters to 24 meters while

both side stationary vending shall be allowed on a road having road width of 30 meters and above.

(e)

Number of street vendors shall be decided by considering holding capacity of each designated vending area on such a road.

(f)

Such stationary vending shall be allowed after taking the clearance from traffic police regarding the smooth vehicular and pedestrian movement. If required, road side parking shall be banned in such area where street vending is allowed.

(g)

Mobile vending shall be allowed on such road looking to the traffic and pedestrian movement.

(h)

A suggestive road design is provided in the annexure appended to the scheme

(4)

The following shall be no vending zone.-The Town Vending Committee may decide the distance to be kept free from Street Vending near the important institutions like Secretariat and District Collectorate, Offices of the District Panchayat, Municipal Corporation, Municipality, Nagar Panchayat, Court, Cantonment Board and State Archaeological Monuments attracting a high footfall, any crossing of two or more roads on all sides or both sides of the railway crossing and any declared heritage structure by the local authority at its discretion taking into account the specifics of the area of concerned.

31.

The principles for determining holding capacity of vending zones and the manner of undertaking comprehensive census and survey.

(1)

Under section 3 of the Act 2.5% of the population of street vendors of a ward/ zone will be accommodated as per the holding capacity.

(2)

The holding capacity of a vending zone will be according to the vending site divided by the total area of the vending area.

(3)

For Areas to be allotted to individual vendors Criterion may be kept by the TVC as follows:-

(i)

A maximum of 2 sq. mts area as 'vending area' shall be provided to each vendor/hawker with dimension of 1.6 meter x 1.2 meter.

(ii)

Passage of 1.0 meter width in front of stalls/ push carts shall be reserved as 'extension' for consumers/ users to stand or buy goods.

(iii)

A walkway/footpath of 1.0/2.0 meters width shall be provided for pedestrians, in front of extension space depending on the road width.

(iv)

In no case, the carriageway shall be allowed to be used for street vending.

(v)

If the width of road permits, street vending may be allowed on both sides of the road.

(vi)

No vending Activity shall be allowed at a distance of 50 meters from any junction/exit/entry of road or the railway crossing.

32.

Criteria of relocation.

(1)

Relocation will be avoided as far as possible, unless there is clear and urgent need for the land in question;

(2)

Affected vendors or their representatives shall be involved in planning and implementation of the rehabilitation project;

(3)

The TVC shall engage in the dialogues with the representatives of the markets.

(4)

Mutually agreed place for relocation should be considered under the implementation of the rehabilitation project.

(5)

Affected vendors shall be relocated so as to improve their livelihoods and standards of living or at least to restore them, in real terms to pre-evicted levels;

(6)

Livelihood opportunities created by new infrastructure development projects may try to accommodate the displaced vendors so that they can make use of the livelihood opportunities created by the new infrastructure;

(7)

Loss of assets shall be avoided;

(8)

Any transfer of title or other interest in land shall not affect the rights of street vendors on such land, and any relocation consequent upon such a transfer shall be done in accordance with the provisions of this Act;

(9)

Any Natural markets where street vendors have conducted business for over fifty years shall be declared as heritage markets, and the street vendors in such markets shall not be relocated;

(10)

The Municipal body shall prepare a list of such markets and declare them as "Heritage Markets". The Municipal bodies in collaboration with the tourism department shall promote such markets as tourist markets by incorporating such elements as may bring in local flavor in that market.

Annexure

Road Designing With Street Vending Space

(in meters)

Sl. No.

Width of Road (in meters)

Footpath

Street Vending Space

Service Road

Cycle Track

Carriageway

Central verge

1

3.5

0.0

0.0

0.0

0.0

0.0

0.0

0.0

2.0

0.0

0.0

0.0

0.0

2

6.0

0.0

0.0

0.0
0.0
0.0
0.0
0.0
2.0
0.0
0.0
0.0
0.0
0.0
3
9.0
1.0
0.0
0.0
0.0
3.5
0.0
1.0
3.0
0.0
0.0
0.0
0.5
4
12.0
1.0
3.0
0.0
0.0
3.5
0.0
5
15.0
1.0
3.0
0.0
0.0
5.0
0.0
6
18.0
1.0
3.0
0.0
0.0
6.0
1.0
7
24.0
1.5

3.0
 0.0
 0.0
 8.5
 1.0
 8
 30.0
 1.5
 3.0
 0.0
 1.0
 9.0
 1.0
 9
 36.0
 2.0
 3.0
 0.0
 1.5
 11.0
 1.0
 10
 40.0
 2.0
 3.0
 0.0
 1.5
 13.0
 1.0
 11
 60.0
 3.0
 4.0
 5.0
 2.0
 15.0
 2.0
 Sl. No.
 Carriageway
 Cycle Track
 Service Road
 Street vending space
 Footpath
 Vending status
 Conditionally allowed
 1
 0.0
 0.0
 0.0
 0.0
 0.0

Not allowed

0.0

0.0

0.0

0.0

0.0

Allowed

No vehicular area

2

0.0

0.0

0.0

0.0

0.0

Not allowed

0.0

0.0

0.0

0.0

0.0

Allowed

No vehicular area

3

3.5

0.0

0.0

0.0

0.0

1.0

Not allowed

3.5

0.0

0.0

0.0

1.0

Allowed

One way road

4

3.5

0.0

0.0

0.0

1.0

Allowed

One side

5

5.0

0.0

0.0

0.0

1.0

Allowed

One side

6

6.0

0.0

0.0

0.0

1.0

Allowed

One side

7

8.5

0.0

0.0

0.0

1.5

Allowed

One side

8

9.0

1.0

0.0

3.0

1.5

Allowed

Both sides

9

11.0

1.5

0.0

3.0

2.0

Allowed

Both sides

10

13.0

1.5

0.0

3.0

2.0

Allowed

Both sides

11

15.0

2.0

5.0

4.0

3.0

Allowed

Both sides

Note. - These calculations are subject to approval of traffic division for carrying capacity of vehicular traffic.

For two lane traffic minimum 7 meters is required for carrying traffic.

Minimum area available for street vending - 3 meters.

Minimum space requirement for pedestrian movements - 1.0 meters.

Related AI tags, queries and research notes

Translation